

Darshan vs Ankita on 1 May, 2024

Author: Anil Verma

Bench: Anil Verma

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IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE
HON'BLE SHRI JUSTICE ANIL VERMA
ON THE 1st OF MAY, 2024
MISC. CIVIL CASE No. 359 of 2024

BETWEEN: -

DARSHAN S/O PRAKASHCHAND YADAV, AGED ABOUT
39 YEARS, OCCUPATION: SERVICE R/O 207 SHANTA
AVENUE NEAR LUV KUSH AAWAS VIHAR KABIT KHEDI
SUKHLIYA INDORE (MADHYA PRADESH)

(BY SHRI SAPNESH KUMAR JAIN - ADVOCATE)

AND

ANKITA W/O DARSHAN YADAV, AGED ABOUT 34
YEARS, OCCUPATION: SERVICE R/O B-196 ABHILASHA
COLONY DEWAS ROAD UJJAIN (MADHYA PRADESH)

BY SHRI (SATISH TOMAR, - ADVOCATE)

This application coming on for admission this day,
following:

ORDER

1. The petitioner has preferred present application under section 24 of the Hindu Marriage Act for seeking transfer of HMA case no. 1498/2022 (Ankita Vs. Darshan Yadav) filed under section 13(A) of Hindu Marriage Act pending before the Principal Judge, Family Court, Indore to the Family Court, Ujjain.

2. Learned counsel for the petitioner contended that the respondent is the wife of the petitioner and she is residing at Ujjain. There are so many litigations between both the parties. Some of the litigations under section 125 of Cr.P.C and under the Domestic Violence Act are pending before different Courts of Ujjain. The respondent herself has also filed an application under section 24 Hindu marriage act seeking relief that she requires to attend the proceedings at Indore and for that ,she needs to take somebody to the court at Indore for which she requires a sum of Rs 2500/- per hearing. Hence, he prays that the case pending before the Principal Judge, Indore be transferred to the Family Court, Ujjain.

3. Per-contra, learned counsel for the respondent opposes the application by submitting that between both the parties, following proceedings are pending before the Court at Indore.

i) M.Cr.C. No. 39429/2023 Smt. Uma & Others Vs. Ankita Pending before Hon'ble High Court Indore.

ii) RCT no. 3011/2019 Ps. Heera Nagar Vs. Prakash Chandra & Others Pending before JMFC , Indore.

iii) MJCR No. 2079/2019 Smt. Uma Vs. Ankita Pendingbefore JMFC, Indore.

4. Present case is related to divorce, which is counter blast of the case under the Hindu Marriage Act, which has been withdrawn by the petitioner. The petitioner's motive is just to delay the proceedings. The respondent had no difficulty to attend the case at Indore. Hence, he prays that present application be dismissed with costs.

5. Heard learned counsel for both the parties at length and perused the record.

6. From perusal of the record, it appears that there are so many proceedings pending between both the parties. Some of the cases are pending before Indore Court under section 125 of Cr.P.C and under the Domestic Violante Act and some of the cases are pending before Ujjain Court.. At present the respondent is residing at Ujjain. It would be more convenient for both the parties if the alleged case is transferred to Ujjain Court and the petitioner could easily appear before the Court at Ujjain

7. Accordingly, present MCC is allowed and HMA case no. 1498/2022 (Ankita Vs. Darshan Yadav) filed under section 13(A) of Hindu Marriage Act pending before the Principal Judge, Family Court, Indore is transferred to the Family Court, Ujjain.

8. Both the parties are directed to appear before the Family Court, Ujjain on 01/06/2024

9. Present MCC stands disposed of accordingly.

10. Let a copy of this order be sent to the Family Court, Indore as well as the Family Court, Ujjain for information and necessary compliance.

CC as per rules.

(ANIL VERMA) JUDGE amol